

26IWUD01159 26IWUD01159

County: los-angeles

Division: Civil Law and Motion

Department: 8

Hearing date: 2026-08-26

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=ING%2C8%2C08%2F26%2F2026

Source SHA-256: 44351db287b64d5200c11a17b6d83f023384ca55fd6239e1bd7fc1d95124d142

Case Number: 26IWUD01159 Hearing Date: August 26, 2026 Dept: 8

The demurrer is overruled. The complaint states a cause of action for unlawful detainer based upon nonpayment of rent, as the three-day notice to pay or quit appears on its face to comply with Code of Civil Procedure section 1161, subdivision (2). The Defendant's argument that the notice overstated the amount of overdue rent cannot be resolved by demurrer, as it relies on facts beyond the face of the complaint of which the court cannot take judicial notice. (See County of Santa Clara v. Superior Court (2023) 14 Cal.5th 1034, 1041.)

To the extent the Defendant argues the three-day notice must identify "how much rent the tenant owes listing each month," the Defendant cites no authority for that proposition, and Code of Civil Procedure section 1161, subdivision (2), requires only that the notice state "the amount that is due."

The Defendant is ordered to file an answer within five days' notice of this ruling.